

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 739

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE PEDIATRIC SECRETIVE TRANSITIONS PARENTAL RIGHTS ACT; AMENDING CHAPTER 10, TITLE 32, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 32-1016, IDAHO CODE, TO PROVIDE A SHORT TITLE, TO PROVIDE LEGISLATIVE FINDINGS AND INTENT, TO DEFINE TERMS, TO ESTABLISH PROVISIONS REGARDING CERTAIN PROHIBITED ACTS, TO PROVIDE FOR CIVIL ACTIONS, AND TO PROVIDE FOR ATTORNEY GENERAL ENFORCEMENT; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 10, Title 32, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 32-1016, Idaho Code, and to read as follows:

32-1016. PEDIATRIC SECRETIVE TRANSITIONS PARENTAL RIGHTS ACT. (1) This section shall be known and may be cited as the "Pediatric Secretive Transitions Parental Rights Act."

(2) The legislature finds that:

(a) Parents have a fundamental right to raise their children and make medical and educational decisions on their behalf;

(b) Medical and social sex transitions can inflict severe and irreversible harm to a child's well-being; and

(c) It is undoubtedly a parental purview and prerogative to have knowledge of, and the authority to deny, a child's efforts at sex transition procedures or social transitions.

(3) It is the intent of the legislature to prohibit any health care provider or educational institution from facilitating a pediatric sex transition or social transition without informing and obtaining informed consent from a minor child's parents or guardians.

(4) As used in this section:

(a) "Aggrieved person" means the parent or guardian of a child subjected to sex transition procedures or social transitions.

(b) "Child" means an individual who is less than eighteen (18) years of age and who is not married or legally emancipated.

(c) "Covered entity" means a primary or secondary educational institution, a child care provider, or a medical, behavioral, or mental health care provider.

(d) "Sex transition procedure" means a practice prohibited pursuant to section 18-1506C, Idaho Code.

(e) "Social transition" means the process by which an individual goes from identifying with and living as a gender that corresponds to the individual's sex to identifying with and living as a gender different from the individual's sex and may involve social, legal, or physical

1 changes, including adopting a name, pronouns, appearance, or dress that
2 does not correspond to the individual's sex.

3 (5) A covered entity shall not withhold information from a child's par-
4 ent or guardian related to the parent's child's expressed interest in or de-
5 sire for sex transition procedures.

6 (6) A covered entity shall notify a minor student's parent within sev-
7 enty-two (72) hours of receiving any request by the minor student to partic-
8 ipate in or facilitate the social transition of the minor student, including
9 any request by the minor student to:

10 (a) Be referred to by pronouns or titles that do not correspond to the
11 minor student's biological sex;

12 (b) Be referred to using names other than the minor student's legal
13 name, or a nickname or derivative thereof, either in school records or
14 otherwise;

15 (c) Use restrooms, locker rooms, changing rooms, or overnight lodging
16 designated for the opposite biological sex; or

17 (d) Participate on an athletic team or any other sex-separated school
18 activity designated for the opposite sex.

19 (7) A covered entity shall not aid or abet a child's efforts to obtain
20 sex transition procedures.

21 (8) An aggrieved person may commence an action at law or equity in a
22 court of competent jurisdiction against a covered entity for violations of
23 this section.

24 (9) If an aggrieved person proves that a covered entity violated the
25 provisions of this section, such aggrieved person is entitled to recover:

26 (a) Declaratory relief;

27 (b) Injunctive relief;

28 (c) Compensatory damages; and

29 (d) Reasonable costs and attorney's fees as allowed by statute or court
30 rule.

31 (10) The attorney general shall have the authority to investigate alle-
32 gations of violations of this section.

33 (11) In addition to any relief granted to aggrieved persons under a
34 civil action, the attorney general may seek, and a court may award, civil
35 penalties of up to one hundred thousand dollars (\$100,000) against a covered
36 entity for violation of this section. Such civil penalties shall be propor-
37 tionate to the violation as determined by the court based on the facts and
38 circumstances of the violation, including the seriousness of the violation,
39 the state of mind of the violator, and the damages actually caused by the
40 violation of this section. Penalties awarded pursuant to this section shall
41 be deposited in the state general fund.

42 (12) The attorney general may refer a covered entity that has violated
43 this section to any licensing board that has issued a professional license to
44 the covered entity. A licensing board is authorized to discipline a covered
45 entity that has been referred to it pursuant to this subsection in a manner
46 that it deems appropriate for a violation of this section.

47 (13) The attorney general may file suit for a writ of mandamus com-
48 pelling covered entities to comply with the provisions of this section.

49 (14) Nothing in this section shall be construed to conflict with the ap-
50 plication or enforcement of section 18-1506C, Idaho Code.

1 SECTION 2. SEVERABILITY. The provisions of this act are hereby declared
2 to be severable and if any provision of this act or the application of such
3 provision to any person or circumstance is declared invalid for any reason,
4 such declaration shall not affect the validity of the remaining portions of
5 this act.

6 SECTION 3. An emergency existing therefor, which emergency is hereby
7 declared to exist, this act shall be in full force and effect on and after
8 July 1, 2026.